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July 11, 2018					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-08

**CARLSTAR GROUP LLC f/k/a CARLISLE TRANSPORTATION PRODUCTS, INC.
and CTP TRANSPORTATION PRODUCTS, LLC**

v.

UTi, UNITED STATES, INC.; UTi UNITED STATES, LLC; and DSV AIR & SEA, INC.

ORDER SETTING BRIEFING SCHEDULE

On June 18, 2018, the parties filed a proposed joint discovery plan ("JDP"). The JDP includes agreements between the parties regarding discovery, deadlines, and other issues. This proceeding began with the filing of a notice of complaint and assignment on September 5, 2017. At the request of the parties, the case was stayed while the parties mediated the dispute with the assistance of the Commission's Office of Consumer Affairs & Dispute Resolution Services. When the stay ended, Respondents filed a motion to dismiss. On May 18, 2018, an initial decision partially dismissing the complaint was issued. On May 24, 2018, this proceeding was transferred to the undersigned. The Commission is currently reviewing the partial dismissal. The JDP addresses the schedule to resolve the remaining claims.

The JDP includes agreements between the parties regarding: initial disclosures, settlement possibility/alternative dispute resolution, discovery plan, additional parties, preservation, electronically stored information, inadvertent disclosure, claims of privilege, and email service. The plan is reasonable and will assist the parties in litigating the case. In addition, deadlines for briefing the case are provided so that the parties are prepared to resolve the proceeding at the close of discovery.

For the reasons stated above, it is hereby:

ORDERED that the parties abide by their agreements as indicated in the JDP and the following schedule:

Aug. 17, 2018	Complainants disclose expert witnesses.
Aug. 24, 2018	Respondents disclose expert witnesses and rebuttal expert witnesses.
Aug. 31, 2018	Complainants disclose rebuttal witnesses.
Sept. 28, 2018 ¹	All discovery completed.
Oct. 29, 2018	Complainants file brief, proposed findings of fact, and appendix.
Nov. 29, 2018	Respondents file opposition brief, proposed findings of fact, appendix, and responses to Complainants' proposed findings of fact.
Dec. 12, 2018	Complainants file reply brief and responses to Respondents' proposed findings of fact.

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

The parties’ briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party’s] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party’s] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; *e.g.*, a page number in the appendix.² The party shall provide to each other party and to the Office of

¹ JDP lists Sept. 28, 2019, however, it appears that the 2019 is an error.

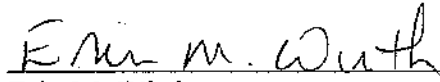
² Parties must designate specific facts and provide the court with their location in the record. *Orr v. Bank of Am., NT & SA*, 285 F.3d 764, 775 (9th Cir. 2002). “General references [to evidence]

Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.

3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2, CX 3, or RX 1, RX 2, RX 3, etc. The appendix should be secured in a three-ring binder;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.
5. **Service and Filing.** The parties are encouraged to serve and file hard copies of the documents required by this order by overnight delivery service.

without page or line numbers are not sufficiently specific.” *S. Cal. Gas Co. v. City of Santa Ana*, 336 F.3d 885, 889 (9th Cir. 2003).

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@finc.gov with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.


Erin M. Wirth
Administrative Law Judge